

Huh v. Wang (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence that her failure to file a responsive pleading was due to surprise or excusable neglect. Plaintiff received timely notice of this Motion and did not file an opposition.

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today's date to file her responsive pleading. The Proposed Answer is not deemed filed.

MARSHALL VS. EVERLAND GROUP LLC, ET AL.

CASE NUMBER: 26CV-0211292

Tentative Ruling on Motion to Seal: Plaintiff moves for an order sealing all records in this action pursuant to CRC 2.550 and 2.551. Neither Defendant has appeared in this action.

Recognizing the public's First Amendment right of access to documents used at trial or as a basis of adjudication and a presumption of openness of substantive court proceedings in ordinary cases, our Supreme Court in *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, set forth the findings that both the trial and appellate courts must expressly make to seal a record. Courts must find that (1) there is an overriding interest supporting sealing records; (2) there is a substantial probability that the interest will be prejudiced absent sealing; (3) the proposed sealing is narrowly tailored to serve the overriding interest; and (4) there is no less restrictive means of achieving the overriding interest. *Id.* at 1217–1218; *see also* California Rule of Court 2.550(d).

Plaintiff's Declaration establishes that there is an overriding interest supporting sealing records and that there is a substantial probability that the interest will be prejudiced absent sealing. However, the grounds proposed – sealing the entire court record – are not narrowly tailored to serve the overriding interest, and there is a less restrictive means. Specifically, the Court finds that permitting Plaintiff to proceed via pseudonym, and to redact her home address from all public filings, is a more narrowly tailored means of achieving the overriding interest of protecting Plaintiff's privacy and addressing her safety concerns given the facts provided in her Declaration.

Plaintiff did not follow the proper procedure for requesting sealing, and has already publicly filed many documents which include her name and home address. In order to protect this information, the Court will permit the records filed from July 24, 2026 through August 31, 2026 to be filed under seal. However, Plaintiff is ordered to file a public version of the Complaint, identical to the first, with the exception that her name be replaced with "Jane Doe" and her address is redacted. Going forward, all documents filed with the Court must use "Jane Doe" and redact the home address. Aside from those modifications, nothing further is permitted to be filed under seal.

The Motion is **GRANTED** in part. The proposed order Plaintiff filed was improperly attached to her Declaration. Plaintiff is directed to lodge a new proposed order that is consistent with this ruling. The clerk is directed to place under seal all documents filed in this action through today's date. Plaintiff is granted 10 days leave to file a public version of her Complaint as detailed above.